

THE LAWS AROUND SAFETY OF WOMEN AT THE WORKPLACE IN INDIA

THE FACTORIES ACT, 1948

Section 22(2)
Prohibition from cleaning, lubricating or adjusting any part of a machine while it is in motion

Section 34
Prohibiting women from lifting excessive weights

Section 48(1)
Provision of a creche if a factory has over 30 women workers

Section 59(1)
A woman worker must not be allowed/ required to work for over 9 hours a day in the factory

Section 66
Women shall work in a factory only between 6 am and 7 pm. (Each state has defined its own working hours and provisions for night shift)

*CONTRACT LABOUR ACT, 1970

Section 18
Provision of sufficient restrooms which must be covered and partitioned to secure privacy, with proper doors and fastenings

THE EMPLOYEES' STATE INSURANCE ACT, 1948

Section 46
Women workers must have access to medical facilities and insurance coverage in case of injury/ illness arising out of job

**PoSH ACT, 2013

Section 4(1)
Every workplace with 10 or more employees is required to have an Internal Committee (IC) to address complaints of sexual harassment

Section 19 (c)
Organise workshops and awareness programmes at regular intervals to sensitise staff on the provisions of the Act and orientation programmes for members of the IC

Section 21
Every IC has to prepare and submit a yearly report to the employer as well as the district officer

*Contract Labour (Regulation & Abolition) Act, 1970; **The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013; compiled by Teamlease Regtech

GAPS IN THE SYSTEM

Poor monitoring and enforcement by government bodies place the onus of compliance on employers, leading to implementation gaps in laws. This leads to...

- **Lack of basic facilities:** These include separate washrooms, creche facilities, rest zones, etc.
- **Safe mobility:** Lack of solutions for commuting, especially during late hours
- **Absence of Internal Committees (ICs):** Even if they are present, their independence is compromised as members often prioritise protecting the organisation's image. This affects integrity of investigations, leading to high pendency rates
- **Low conviction rates:** The conviction rates in harassment and assault cases remain low due to lack of evidence and extended trial periods
- **Persistence of societal biases:** Gender biases, victim-blaming and the shame associated with sexual crimes persist in society
- **Fear of retaliation:** Lack of protection mechanisms for victims force women to remain silent
- **Insufficient sensitisation:** Training and awareness programmes are not conducted frequently enough for all employees, including contractors, gig workers, consultants, blue-collar staff
- **Underreporting of minor crimes:** Smaller offences go unreported

THE ACTION REQUIRED

- Active monitoring and compliance with regulations for women's safety
- Ensuring office spaces are well-lit and regularly patrolled to enhance safety
- Installing and maintaining CCTV cameras in strategic locations for effective monitoring and deterrence of crimes
- Having separate toilets and dedicated spaces for women to rest in on night shifts
- Implementing an efficient emergency response system, including helpline numbers for immediate assistance
- Providing secure and convenient transportation options, especially during late hours, with safety apps and geotracking